TOP 10 RULINGS

1. **PUDR vs Union of India** *1982*
2. **IMA vs Union of India** *2011*
3. **The Dawoodi Bohra Case (dissent)** *1962*
4. **Naz Foundation vs NCT of Delhi** *2009*
5. **Joseph Shine vs Union of India** *2018*
6. **State of Kerala vs N.M. Thomas** *1975*
7. **Selvi vs State** *2010*
8. **Asif Iqbal Tanha vs State of NCT of Delhi** *2021*
9. **T. Sareetha vs Venkatasubbaiah** *1983*
10. **K.S. Puttaswamy vs Union of India** *2017*

Chief Justice B.P. Sinha's dissenting judgment in the ***Dawoodi Bohra Case*** (1962) where, against four of his colleagues, the Chief Justice held that an anti-excommunication law was constitutional despite allegedly infringing upon the freedom of religion, as it was designed to safeguard an individual's civil rights from his/ her *own* community. That fundamental insight would be reaffirmed more than 50 years later, when Maharashtra passed an anti-social boycott law in 2016.

Unsurprisingly, the cases above involve fundamental questions around equality, in a society that continues to be stratified and discriminatory along multiple axes. Often, this discrimination is written into law, and there have been long struggles against such laws. A classic example of the courts acting to further the principle of equality even against codified law is the Delhi High Court's judgment in ***Naz Foundation vs NCT of Delhi*** (2009), which first decriminalised same-sex relations on the touchstone of equality, non-discrimination, human dignity and the right to health. *Naz Foundation* was reversed by the Supreme Court in 2013 in *Koushal vs Naz*, but ultimately resurrected just five years later, in *Navtej Johar vs Union of India*. Along with *Navtej Johar*, the high court judgment remains a model of inspiring clarity on fundamental issues of equality before the law. At around the same time as *Navtej Johar*, the SC also decriminalised adultery in ***Joseph Shine vs Union of India*** (2018). The significance of *Joseph Shine* lies in the fact that it is the most rigorous and detailed examination of gender discrimination under the Constitution by a court; the SC drew upon a range of arguments to hold that laws based on gendered stereotypes, and laws that had the effect of entrenching substantive gender disadvantage, were unconstitutional.

Entrenched disadvantage was also at the heart of the SC's judgment in ***State of Kerala vs N.M. Thomas*** (1975), arguably India's best reservation judgment. For the first time, the SC held that Article 16(4) of the Constitution—which authorised reservations—was not to be understood as an exception to the rule of equality, but rather, as an emphatic restatement of it. In other words, Indian constitutionalism was committed to a *substantive* vision of equality, which took into account entrenched and existing group disadvantages, and sought to overcome them.

B.R. Ambedkar once described liberty, equality and fraternity as the holy trinity that underlay the Constitution. The judgments above have discussed issues around fraternity and equality; but what of liberty, or human freedom? In ***Selvi vs State*** (2010), the SC considered the position of the individual at his or her most vulnerable against the state: in a police station. The court held that certain interrogation techniques such as narco-analysis and brain-mapping were unconstitutional, as they violated the right against self-incrimination and the right to mental privacy; the court, thus, put fetters on what the state could do to people, and claim to do it righteously, in the name of crime-fighting. This was also at the heart of the Delhi High Court's judgment in ***Asif Iqbal Tanha vs State of NCT of Delhi*** (2021), where the court granted bail to three individuals imprisoned under the draconian UAPA, by refusing to act as a post-office for the police, and by subjecting the state's case to close scrutiny (upon which it fell apart). In an age in which the UAPA is being increasingly weaponised to keep dissidents in jail without trial, the Delhi High Court here demonstrated the importance of a Constitution, and an independent judiciary, as a check upon authoritarianism.

Freedom and equality are complementary, and nowhere is this more evident than in the Andhra Pradesh High Court's judgment in ***T. Sareetha vs Venkatasubbaiah*** (1983), which examined privacy and the public/ private divide from the perspective of women's equality and freedom. The court struck down the 'restitution of conjugal rights'—which penalises spouses who have 'unreasonably withdrawn themselves from the company' of the other spouse—as violating the fundamental right to decisional autonomy and intimate choice. Although *Sareetha* was overturned by the SC shortly after, it was vindicated in 2017 in the case that rounds off this selection: ***K.S. Puttaswamy vs Union of India*** (2017), or the 'right to privacy' case. The nine-judge bench's restatement of the right to privacy under the Indian Constitution is also a restatement of Indian *constitutionalism*, and sets the foundation for a progressive and transformative jurisprudence (much of which, of course, remains a work in progress).

These 10 cases—in a sense, brought together and summed up in *Puttaswamy*—show Indian constitutionalism and the judiciary at their best: a constitutionalism that questions, interrogates and democratises power, within the constitutional frameworks of liberty, equality and fraternity. ■